



File No.: EXP202300158

RESOLUTION OF EXPIRATION OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 09/01/2023, a document was received by this Agency submitted by A.A.A. (hereinafter, the claimant), through which a complaint is filed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent) for a possible breach of the provisions of the personal data protection regulations.

The reasons on which the complaint is based are as follows:

“B.B.B. has a restraining order against me since (...), due to gender-based violence. On (...), he posted a photo on his Instagram profile (...) without censoring it, in which I can be clearly seen (...). This photograph was already posted two years ago, but pixelated, making it easily recognizable by the followers of his page, mine, and mutual friends. In fact, it was some friends who informed me that he had uploaded this photograph. (...) I request that this photograph be removed and that this person be sanctioned because I have never given him the right to upload this photograph; just as I did not sign any consent for the transfer of images or data at that time (two years ago). (...)”

Along with the complaint, the following documentation is provided:

- Screenshots of the image in question published in 2021 and 2023.
- Copy of the Police Report, dated 08/XX/20XX, in which the claimant files a complaint of gender-based violence after suffering psychological abuse with the publication subject to the complaint.
- Copy of the Restraining Order issued in ***LOCALIDAD.1 by the Magistrate-Judge of Instruction, dated 04/01/2023.

SECOND: This Agency accessed the Instagram profile of the respondent, (...), where the publication subject to the complaint appears with the title: “(...)”.

THIRD: On 10/01/2023, in accordance with Article 65 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the complaint filed by the claimant was admitted for processing.

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FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

1) On 11/01/2023, this Agency issued an Agreement for the adoption of a provisional measure requiring the respondent to remove the reported content from the following electronic addresses:

- ***URL.1

- ***URL.2

This agreement, in accordance with the rules established in the LPACAP, was notified by postal mail to the respondent on 19/01/2023, resulting in “Delivered” to the respondent, as recorded in the acknowledgment of receipt in the file.

2) By means of a diligence carried out by this Agency on 09/02/2023, it was verified that the reported content has been removed.

FIFTH: On 03/10/2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations

(hereinafter, LPACAP), for the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5.a) of the GDPR.

This initiation agreement, in accordance with the rules established in the LPACAP, was notified to the respondent on 23/10/2023, as recorded in the acknowledgment of receipt in the file.

SIXTH: On 02/11/2023 and 20/11/2023, the respondent requested a copy of the file. Additionally, in the last document, he stated that "this party denies the facts and legal grounds in all that may be detrimental to him and states that he will submit allegations once he can know the content of the file."

SEVENTH: On 13/12/2023, the instructor of the procedure agreed to send a copy of the administrative file to the respondent, following the documents submitted by the respondent.

EIGHTH: On 19/12/2023, the respondent requested that copies of two documents attached to the complaint that were not provided in the copy of the file be sent to him. Specifically, a copy of the restraining order and the complaint filed by the claimant.

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NINTH: On 11/04/2024, the instructor of the procedure decided not to address the request for supplementary documentation, understanding that sending the requested documentation could affect the prevention, investigation, and sanctioning of criminal offenses.

It was also indicated that the documentation provided allowed for knowledge of the evidence that this Agency had regarding the claimed party and, therefore, had the necessary means to exercise its right to defense; without being diminished.

Finally, it was agreed to grant a maximum period of ten business days from the day following the notification of this document to submit allegations.

TENTH: On 11/04/2024, the claimed party reiterated its request for supplementary documentation, considering the restraining order documents and the complaint filed by the claiming party "essential" for this Agency to reach "the conclusion that Mr. B.B.B. is the holder of that Instagram account and that he was the one who uploaded those images."

ELEVENTH: On 21/08/2024, the instructor of the procedure issued a proposal for resolution in which it proposed imposing a fine of €10,000 on the claimed party, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the infringement of Article 6.1 of the GDPR, classified in Article 83.5.a) of the GDPR.

This proposal for resolution, in accordance with the rules established in the LPACAP, was electronically notified to the claimed party on 02/09/2024, as evidenced by the acknowledgment of receipt in the file.

TWELFTH: On 13/09/2024, a written statement of allegations regarding the proposal for resolution from the claimed party was received by this Agency, in due time and form, and after stating what was pertinent to its rights, it concluded by requesting the filing of the sanctioning procedure initiated against the claimed party or, subsidiarily, the reduction of the fine to €450.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Procedures in case of possible violation of data protection regulations

Article 64 of the LOPDGDD determines the following regarding procedures in case of possible violation of data protection regulations:

“(…)

2. When the procedure aims to determine the possible existence of an infringement of the provisions of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, and of this organic law, it shall be initiated by an initiation agreement, adopted by its own initiative or as a consequence of a complaint, which shall be notified to the interested party.

If the procedure is based on a complaint filed with the Spanish Agency for Data Protection, prior to this, it will decide on its admission for processing, in accordance with the provisions of Article 65 of this organic law.

Once the complaint is admitted for processing, as well as in cases where the Spanish Agency for Data Protection acts on its own initiative, there may be a phase of preliminary investigative actions prior to the initiation agreement, which shall be governed by the provisions of Article 67 of this organic law.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the actions will be archived.

3. (…)

4. (…)

5. The processing deadlines established in this article as well as those for admission to processing regulated by Article 65.5 and the duration of the preliminary investigative actions provided for in Article 67.2 shall be automatically suspended when information, consultation, request for assistance, or mandatory pronouncement from an organ or body of the European Union or from one or more supervisory authorities of the Member States must be obtained in accordance with the provisions of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, for the time that elapses between the request and the notification of the pronouncement to the Spanish Agency for Data Protection.

6. The passage of the processing deadlines referred to in the previous section may be suspended, by reasoned resolution, when it is essential to obtain information from a judicial authority.”

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In accordance with the provisions of the transcribed article, the sanctioning procedure shall be understood as expired if, after more than twelve months from the date of the initiation agreement, the resolution of the sanctioning procedure has not been issued and notified.

In the present case, the initiation agreement was signed on October 3, 2023. The twelve-month maximum duration of the sanctioning procedure would end on October 3, 2024, and currently, the procedure is still pending completion, therefore it must be declared expired.

III

Prescription of the infringement

On the other hand, Article 95.3 of the aforementioned LPACAP states:

“The expiration will not, by itself, produce the prescription of actions by the individual or the Administration, but expired procedures will not interrupt the prescription period.

In cases where it is possible to initiate a new procedure due to the absence of prescription, the acts and procedures whose content would have remained the same had the expiration not occurred may be incorporated into this new procedure. In any case, in the new procedure, the procedures for allegations, evidence proposals, and hearing of the interested party must be fulfilled.”

Therefore, in accordance with the aforementioned, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO DECLARE the EXPIRATION of the present sanctioning procedure, with number PS/00263/2023.

SECOND: TO NOTIFY this Resolution to B.B.B., with NIF ***NIF.1.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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